

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

WAY2GO CARGO CORP.,
Complainant,
v.

DOCKET NO. 25-14

OAK WAY CARGO, LLC,
Respondent.

JOINT MOTION TO EXTEND SCHEDULING ORDER DEADLINES

Complainant, WAY2GO CARGO CORP. and Respondent, OAK WAY CARGO, LLC, by and through their respective counsel, and pursuant to Federal Rules of Civil Procedure 16(b)(4), and all other applicable rules, orders and case law, hereby file this Joint Motion to Extend Scheduling Order Deadlines (“Motion”), and in support thereof, state as follows:

1. The parties seek a 30-day extension to the following deadlines set forth in the Commission’s November 20, 2025, Scheduling Order:

- a. Completion of depositions of fact witnesses on February 5, 2026,
- b. Disclosure of initial and rebuttal expert reports on February 12 and 19, 2026, respectively, and
- c. Completion of expert depositions on February 26, 2026.

2. Good cause exists for this request, as there are competing motions related to discovery disputes between the parties currently pending the Commission’s adjudication.

3. First, Complainant filed its Motion to Compel Deposition of Respondent’s Corporate Representative on January 27, 2026.

4. Respondent filed a Cross-Motion for Protective Order (“MPO”) on February 2, 2026, regarding the Complainant’s Notice of Taking Deposition of the Respondent’s Corporate

Representative. Due to the partial government shutdown,¹ the parties anticipate the Commission's adjudication of the Respondent's MPO will take longer than the typical amount of time to be resolved.

5. Respondent has not agreed to sit for deposition, if it is required to do so, until the pending discovery motions described above are resolved. Further, both parties are still in the process of gathering and reviewing documents for production, and it would be ineffective to commence depositions prior to the documents being produced.

6. Additionally, the parties are entitled to complete fact discovery in order to disclose its expert witness and a report. Therefore, the parties would be prejudiced without the extension of time to complete the deposition of Respondent and disclose its expert witness and a report.

7. Thus, given that: (1) discovery is still ongoing; (2) the parties require time to engage in additional discovery; and (3) the parties are in agreement that additional time beyond the current deadlines set forth in the Scheduling Order is necessary for parties to complete fact discovery, expert disclosures, and expert depositions, the parties seek to extend the current case management deadlines in the Order as follows:

- a. Completion of depositions of fact witnesses on March 8, 2026,
- b. Disclosure of initial and rebuttal expert reports on March 15 and 22, 2026, respectively, and
- c. Completion of expert depositions on March 30, 2026.

8. The undersigned stipulate that the parties have conferred in good faith concerning the above-requested deadlines and are serving this Motion jointly.

9. Counsel for the parties believe that it would be in the interests of judicial economy

¹ On February 2, 2026, the Office of Administrative Law Judges notified the parties via e-mail that the Commission's offices would be closed as of January 31, 2026, as a result of the shutdown.

and the appropriate presentation of this matter if the above-stated deadlines set forth in the Scheduling Order are extended.

10. No party would suffer any prejudice or inconvenience as a result of the relief requested in this Motion. To the contrary, the parties are jointly and requesting the relief sought through this Motion.

11. The parties certify they are not seeking the requested relief for any improper purpose. Rather, they do so to provide all parties with sufficient opportunity to prepare the case and make an appropriate presentation to the Commission and factfinder.

12. Undersigned counsel certify that this Motion is made in good faith and not for the purposes of delay or other improper purpose.

WHEREFORE, the Parties respectfully request the Commission enter an order extending the Scheduling Order deadlines as follows:

- a. Completion of depositions of fact witnesses on March 8, 2026,
- b. Disclosure of initial and rebuttal expert reports on March 15 and 22, 2026, respectively, and
- c. Completion of expert depositions on March 30, 2026.

and granting any further relief the Commission deems just and proper.

Dated: February 3, 2026.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was filed via electronic mail upon the Office of the Secretary at secretary at secretary@fmc.gov and served upon all counsel of record for OAK WAY CARGO, LLC at zkass@b2b.legal on this 3rd day of February 2026.

BY: /s/ Jennifer S. Roldan
Jennifer S. Roldan, Esq.